Report Intellectual Property Law for the Intervention Recommender (Heijmans Vastgoed)

JM0160 Intellectual Property and Privacy, Assignment 2: Intellectual Property Law

Group 16

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Table of contents

1 Brief Statement of the Relevant Facts of the Project **3**
1.1 The Intervention Recommender Tool for Heijmans Vastgoed . . . 3

2 Analysis of IP Rights Protection **3**
2.1 Database rights . . . 4
2.2 Copyright . . . 4
2.3 Trade Secrets . . . 4

3 Assessment of Barriers and Infringement **5**
3.1 Using Heijmans' list and scans . . . 5
3.2 Scraping the third-party library . . . 5
3.3 Commercial reuse . . . 5
3.4 Overall assessment . . . 5

4 Advice **6**

Technology Statement **6**

References **6**

1 Brief Statement of the Relevant Facts of the Project

1.1 The Intervention Recommender Tool for Heijmans Vastgoed

Heijmans Vastgoed, a Dutch property developer, uses well-being impact scans to identify opportunities in neighborhoods. From these opportunities, interventions can be derived, such as what to change or what to built in the neighborhoods. The scans show opportunities but do not recommend which interventions fit. Our team developed an Intervention Recommender Tool to close this gap: a decision-support application that for a given neighborhood ranks well-being interventions using a transparent, weighted scoring model.[1]

The tool is built on a structured database of interventions. Each intervention is classified by theme and category and scored on criteria such as impact, cost, effort, risk and feasibility. The database combines an initial collection of interventions with a list supplied by Heijmans. The initial scores were generated together with generative AI and later evaluated and adjusted through a manual review by the team.[2] The tool is intended to support consultants and project managers, not replace them, and to be scalable across projects.[3]

This report assesses the project in an operational scenario. The following points are assumptions to scope the assignment, not all of them were part of the original project:

1. The team acts as a Dutch data consultancy hired by Heijmans under a proposal that covers scope and fees and contains a mutual confidentiality clause. It has no clause on who owns the combined database or tool.
2. Heijmans' intervention list and impact scan were built internally over several years through its own investment of time and expertise. They are not public and were shared with the consultancy under the confidentiality clause only
3. To fill gaps in the database, the consultancy wants to add interventions from a third-party online intervention library, collected by automated means. The library is maintained by a Dutch organisation, whose editorial team collects, checks and updates the interventions. Furthermore it is free to use, but access requires registering an account and accepting terms of use. Those terms prohibit automated access and extraction of the contents.
4. Heijmans wants to reuse the tool and the combined database across its own projects and to offer them commercially to third parties, such as housing corporations and municipalities. The consultancy wants to keep the right to reuse the generic parts of the tool for other clients

2 Analysis of IP Rights Protection

Based on the case description above, this section tests five assets against each right:

1. Heijmans' intervention list (A) and the impact scans (B)
2. The third-party library (C);
3. The combined database, including the AI-generated and reviewed scores (D), and
4. The tool (source code and scoring model) (E)

Table 1: Overview of IP protection per asset

Asset	Protected by	Rightholder
(A) Heijmans' intervention list	Sui generis right; trade secret	Heijmans
(B) Impact scans	Copyright; trade secret	Heijmans
(C) Third-party library	Sui generis right	Library owner
(D) Combined database	Sui generis right (collection layer only); AI scores unprotected	Heijmans
(E) Source code & model	Copyright (for source code only); trade secret	Consultancy

[1] (Heijmans Project Team 2026, secs. 1–3)
[2] (Heijmans Project Team 2026, secs. 3.2–3.4, 4)
[3] (Heijmans Project Team 2026, secs. 2, 7)

2.1 Database rights

A database is a collection of independent materials, arranged systematically and individually accessible.[4] The intervention list (A), the library (C) and the combined database (D) fit this definition: each consists of separate interventions that can be retrieved one by one. The impact scans (B) do not. Each scan is one integrated analysis of a neighborhood whose parts have no autonomous informative value, so they are assessed under copyright and trade secrets only.

Database copyright requires the selection or arrangement of the contents to be the author's own intellectual creation. Labour and skill spent on the data itself are irrelevant.[5] Grouping interventions by theme and category and scoring them on standard criteria is functional and leaves little room for creative choices, so none of the three databases qualifies.

The sui generis right instead rewards a substantial investment in obtaining, verifying or presenting the contents rather than in creating them.[6] Heijmans built its list (A) over several years, investing its own time in obtaining and structuring the interventions. Because that investment went into gathering existing material, it is protected with Heijmans as maker. The library (C) is protected as well: its Dutch maker invests in collecting, checking and updating interventions through an editorial team.[7] For the combined database (D), the consultancy's work in collecting and presenting interventions from several sources counts, but the scores do not: generating and then reviewing them is the creation of new data.[8] A sui generis right therefore exists in the collection layer only. Its maker is whoever took the initiative and bore the risk of the investment. [9] Although Heijmans commissioned the tool rather than the database, it pays for all work on the project, including the database, so it bears the investment risk and is the maker.

2.2 Copyright

A work is protected if it is the author's own intellectual creation, reflecting free and creative choices.[10] Ideas, methods of operation and the principles underlying a computer program are not. [11]

The impact scans (B) meet this test: their authors chose how to combine text, analysis, maps and recommendations. Protection covers that expression, not the facts and findings. Because Heijmans' employees wrote the scans as part of their work, Heijmans is treated as the author and holds the copyright.[12]

The source code (E) is protected as a computer program. It was written by the consultancy's employees, so the consultancy holds the copyright; commissioning and paying for the tool does not transfer it to Heijmans.[13] The scoring model (E) is not protected: its criteria, weights and ranking logic are ideas and methods of operation. The AI-generated scores (D) are not protected either, as they reflect no human creative choices, and adjusting a numeric score is not a creative choice.

2.3 Trade Secrets

Information is a trade secret if it is secret, has commercial value because it is secret, and is subject to reasonable steps to keep it secret.[14] Heijmans' list (A) and scans (B) meet all three conditions: they are not public, they reveal where Heijmans sees development opportunities, and the consultancy received them under a confidentiality clause. This covers their content, including the findings that copyright leaves free, which makes it Heijmans' strongest right. The source code and scoring model (E) meet the same conditions. They are not public, their value lies in a working method that competitors cannot simply copy, and the mutual confidentiality clause binds Heijmans. Because the proposal is silent on ownership, the consultancy remains the holder, as it developed the model and controls it.[15]

[4] Art. 1(2) (European Parliament and Council 1996); Art. 1(1)(a) Dbw; (Court of Justice of the European Union 2004a).
[5] Art. 3(1) (European Parliament and Council 1996); Art. 10(3) Aw; (Court of Justice of the European Union 2012a).
[6] Art. 7(1) (European Parliament and Council 1996); Art. 2 Dbw; (Court of Justice of the European Union 2004b).
[7] Art. 11 (European Parliament and Council 1996).
[8] (Court of Justice of the European Union 2004b).
[9] Recital 41 (European Parliament and Council 1996); Art. 1(1)(b) Dbw.
[10] (Court of Justice of the European Union 2009); CJEU 12 September 2019, C-683/17 (*Cofemel*).
[11] Art. 9(2) TRIPS; Art. 1(2) Directive 2009/24/EC; (Court of Justice of the European Union 2012b).
[12] Art. 7 Aw.
[13] Art. 1 Directive 2009/24/EC; Arts. 2, 7 and 10(1)(12) Aw.
[14] Art. 2(1) (European Parliament and Council 2016); Art. 1 Wbb.
[15] Art. 2(2) (European Parliament and Council 2016).

3 Assessment of Barriers and Infringement

3.1 Using Heijmans' list and scans

- Conclusion: no real risk within the Heijmans project.
- Act: copying the list (A) into the database and deriving interventions from the scans (B).
- Rights engaged (Sections 2.1 and 2.3): sui generis in A, trade secret in A and B (Art. 4 TSD: use in breach of a duty limiting use).
- Copyright in B (one sentence): the tool uses the findings, not the expression, so copyright is not infringed.
- Contract: the confidentiality clause allows use for the project only. Use beyond it is covered under reuse.

3.2 Scraping the third-party library

- Conclusion: infringement and breach of contract.
- Act: automated reproduction and extraction, then analysis.
- Rights engaged: sui generis extraction (Art. 7(1) DD), including repeated and systematic extraction of insubstantial parts (Art. 7(5) DD).
- Exceptions: lawful user (Arts. 6(1) and 8(1) DD; Art. 15 DD makes them mandatory) does not help with substantial extraction; Art. 3 DSM does not apply to a commercial consultancy (one sentence); Art. 4 DSM requires lawful access, no opt-out and storage only as long as needed.
- Contract (data-mining analysis): the terms ban automated access and extraction. Because the library is protected (Section 2.1), the opt-out in the terms removes Art. 4 DSM. Optional clause: an opt-out in natural language may be enough (*Kneschke v LAION*).
- Sensitivity (one sentence, *Ryanair*): if the library were not protected, only the terms would limit use.
- Residual risk: a sui generis claim and a contract claim against the consultancy.

3.3 Commercial reuse

- Conclusion: the main barrier, because each party needs the other's rights. Start from the ownership found in Section 2, without re-deciding it.
- Heijmans offering the tool to third parties: reproducing and distributing the code needs a licence from the consultancy (copyright in E); disclosing the scoring model may breach the consultancy's trade secret and the mutual confidentiality clause.
- The consultancy reusing generic parts: fine for its own code and model; reusing D infringes Heijmans' sui generis right, and using A breaches its trade secret.
- Scraped library content passing to Heijmans: re-utilisation (Art. 7(2)(b) DD). The library owner has a sui generis claim against both, but a contract claim only against the consultancy, since Heijmans never accepted the terms.
- Residual risk: dispute over who made D (Heijmans commissioned the tool, not the database), and the library owner's claims.

3.4 Overall assessment

What blocks the project (commercial reuse without a contract, scraping), what only needs a step, and what is fine (use of Heijmans' list within the project). One sentence on the AI scores: unprotected, so free to reuse but also free for others to copy.

4 Advice

Technology Statement

During the preparation of this work, we used [NAME TOOL / SERVICE / VERSION] in order to [REASON]. The following parts of the assignment were affected by AI tool usage: [SECTIONS]. After using this tool/service, [NAMES OF STUDENTS] evaluated the validity of the tool's outputs, including the sources that generative AI tools have used, and edited the content as needed. As a consequence, [NAMES OF STUDENTS] take(s) full responsibility for the content of their work.

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